

		Decl., ¶ 5.) On 6/25/26, Plaintiff's counsel responded by email to state, "I disagree with your analysis. Please proceed with filing demurrer." (Kassan Decl., ¶ 6.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. Moving party to give notice.
2	Schreiber v. Stewart 2024-01384707 Motion for Leave to File Amended Cross Complaint	Defendant/cross-complainant Nikki Jeannine Stewart's Motion for Leave to File First Amended Cross-Complaint is DENIED without prejudice. Legal standard "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc., § 473, subd. (a)(1).) "Motions for leave to amend are directed to the sound discretion of the judge" (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).]) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (<i>Ibid.</i>, [citations omitted].) California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend must: (1) Include a serially numbered copy of the proposed amended pleading; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

		California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. Stewart seeks an order granting leave to file a first amended cross-complaint to "clarify legal theories arising from the same operative facts." (Mtn. at 4:25-26.) Specifically, Stewart seeks to "clarify[y] existing allegations regarding erosion, excavation, and destabilization of this hillside." (Mtn. at 5:23-24.) Stewart contends there is no prejudice as the proposed amendment does not alter the nature of the action and the core evidence and witnesses remain the same. Plaintiff/cross-defendants contend Stewart does not comply with California Rules of Court, rule 3.1324, subdivision (b) and that the amendment materially expands the case making the failure to comply with rule 3.1324 consequential. Stewart's declaration submitted in support of the motion does not comply with Rule 3.1324, subdivision (b). While Stewart states in the motion that the need for amendment "became apparent following further evaluation of the site conditions, including consultation and site review" (Mtn. at 7:4-9), its inclusion in the motion itself does not comply with Rule 3.1324. Nor does this provide the additional information required by Rule 3.1324, including why the request for amendment was not made earlier. While Stewart included a supplemental declaration in support of the reply, which Stewart contends complies with Rule 3.1324, doing so in the reply does not provide Plaintiff/cross-defendants the opportunity to respond to the new issues raised. (<i>American Drug Stores v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453 ["Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument."])
3	L. v. Flores-Rivas 2022-01259553 Motion to Be Relieved as Counsel of Record OSC Re Dismissal on Settled Case	The motion of attorney Simah Aljabari from Ledezma Law, APLC to be relieved as counsel of record for defendant Felipe Rivas is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.